

Order Sheet
IN THE LAHORE HIGH COURT
Multan Bench, Multan
Judicial Department
W.P. No. 7788 of 2020

Rohail Rizwan Qureshi. Vs. Globe Cosmetics Company etc.

Sr. No. of order/ proceedings	Date of order/ Proceeding	Order with signature of Judge, and that of Parties' counsel, where necessary
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03.07.2020. Mr. Zahoor Ahmad Ch., Advocate for petitioner.
Mr. Ahmad Nadeem Ghela, A.A.G.

Through this Constitutional petition, the petitioner challenges the order dated 17.06.2020 (**‘Impugned order’**) passed by learned Chairman Punjab Labour Appellate Tribunal No.II, Multan, (**‘Appellate Tribunal’**) whereby Labour Revision (**‘LR-47/2019’**) filed by the respondent-Company (**‘Respondent’**) against the petitioner has been accepted subject to payment of costs of Rs. 5000/-, on the basis of consent given by the petitioner and the matter has been remanded to the Commissioner Workmen’s Compensation/Authority under Payment of Wages, 1936 (**‘Authority’**) for decision afresh after providing only one opportunity to the respondent to file written reply and holding proper trial.

2. Learned counsel for the petitioner seeks setting aside of the impugned order by arguing that the observations recorded by the Appellate Court in the impugned order do not properly depict what actually transpired in the court and states that Sheikh Khalid Hakeem Advocate who represented the petitioner before the Appellate Tribunal has issued a certificate to the effect that he had only requested for an adjournment and did not get any consenting statement recorded for remand of matter for decision afresh.

3. On the other hand learned AAG has supported the impugned order and has argued that presumption of genuineness is attached to all judicial proceedings and unless the petitioner can show from some material available on the record that the proceedings were incorrectly recorded or that his statement was incorrectly interpreted by the court to reach a conclusion that was not warranted, this Court in its constitutional jurisdiction would not ordinarily interfere in the same. Besides, petitioner should have availed alternate remedy and raised this ground in the first instance before the Appellate Tribunal instead of directly approaching this Court, as the said court was the best judge of what transpired in the court and could correct the error, if any, had crept into the its order.

4. The petitioner filed an application against the respondent under Section 15(3) of Payment of Wages Act, 1936 ('Act') with the Authority for recovery of compensation amount of Rs. 9,70,934/-, which was partially allowed vide order dated 06.02.2019 for an amount of Rs. 5,14,900/-. The respondent's appeal against the said order was dismissed on 17.04.2019 by the Learned Presiding Officer of Labour Court No. 9, Multan ('Labour Court'). The respondent by filing Revision before the Appellate Tribunal challenged both the afore-said orders and also called in question order dated 29.09.2017 passed by the Authority whereby it had earlier initiated ex-parte proceedings against the respondent. The said revision was fixed for hearing before the Appellate Tribunal on 17.06.2020, when the same was accepted and matter was remanded to the authority for decision afresh. The said order is reproduced below:

"During arguments on application for setting aside ex-parte proceedings order dated 03.02.2020 the learned

counsel for the petitioner has no objection for allowing said application subject to payment of costs, which is accordingly accepted subject to Rs. 1000/- as costs.

2. During arguments on main Labour Revision filed against the impugned order dated 06.02.2019 passed by Commissioner Workmen's Compensation/Authority under Payment of Wages Act, 1936 and order dated 17.04.2019 passed by the learned Presiding Officer, Punjab Labour Court No. 9, Multan, whereby the Authority by former order awarded partial claim amount of Rs. 5,14,900/- to the respondent Rohail Rizwan, while appeal against said order was dismissed by latter order passed by the learned Presiding officer, Punjab Labour Court No. 9, Multan and through the above proceedings the petitioner has also sought setting aside of ex-parte proceedings order dated 27.09.2017 passed by the Authority, the learned counsel for the respondent states that in view of irregular proceedings conducted by Authority particularly the order dated 09.09.2017 he has no objection if Labour Revision is accepted subject to payment of heavy costs and the matter is remanded to the Authority to grant only one opportunity to the petitioner to file written reply and after satisfying the formalities of proper trial decide the main petition of the respondent filed under section 15(3) of Payment of Wages Act, 1936 afresh in accordance with law. I have also no objection if the petitioner deposits the amount of Rs.5,14,900/- in shape of cheque before the Authority which will remain as a guarantee for his client.

3. In view of above statement made by the learned counsel for respondent Labour Revision is accepted subject to Rs. 5000/- as costs. After setting aside the impugned orders challenged through this Labour Revision the matter is remanded to the Authority to grant only one opportunity to the petitioner to file written reply and after receiving the written reply to the main petition hold proper trial of the main petition and after said exercise to decide the petition under section 15(3) of Payment of Wages Act, 1936 afresh in accordance with law. The petitioner is permitted to deposit the cheque of Rs. 5,14,900/- with the Authority within seven days and this amount shall not be disbursed to anyone and its disbursal shall be subject to final disposal of main petition. A copy of this order be sent to the Authority concerned for information and compliance and file of revision to record. "

(emphasis supplied)

5. Although the petitioner claims that the observations and conclusions of the Appellate Tribunal in the above-mentioned order are incorrect, law presumes otherwise and such observations and conclusions are given due recognition as presumption of correctness is

attached to the same, which is based on universally recognized principle of law embodied in the maxim of law “*Omnia praesumuntur rite et solemniter esse acta*”, which provides that all acts are presumed to have been done correctly and solemnly. The said principle of law is also recognized by codified Law in this Country, which is evident from illustration (e) of Article 129 of Qanun-e-Shahadat Order, 1984, wherein it is provided as under:

“129. Court may presume existence of certain facts: The Court may presume the existence of any fact which it thinks likely to have happened, regard being had to the common course of natural events, human conduct and public and private business, in their relation to the facts of the particular case.

Illustrations

The Court may presume---

(e) that judicial and official acts have been regularly performed.”

6. This principle of law that presumption of authenticity was attached to the judicial proceedings and record has also been recognized by Courts of law in various judicial pronouncements. Reference in this regard may be made to cases of **Farzana Rasool and 3 others versus Dr. Muhammad Bashir and others** (2011 SCMR 1361), **Fayyaz Hussain versus Akbar Hussain and others** (2004 SCMR 964), **Kamal Athar versus State** (1992 SCMR 282), **Haji Muhammad Ilyas versus Haji Mushtaq Ahmed through L.Rs.** (2019 CLC 2041 Lahore).

7. The question arises is that as the presumption of correctness/authenticity is attached to the judicial record and judicial proceedings, then whether and, if any, what remedy would be available to aggrieved person or party to the proceedings where some error or omission has crept in the judicial record or would such person or party be rendered remediless? The obvious answer is that such a

person may avail any remedy provided under the law subject to limitations imposed by law, which remedy may be before the same court or before a higher forum. Besides, if more than one remedy is available, he may elect to choose any one of the said remedies. Furthermore, the presumption of correctness and authenticity of judicial record does not bar the remedy available under the law for the reason that such presumption is not an absolute presumption against which no other viewpoint can be agitated or entertained rather the same like most of the presumptions is rebuttable subject to strict proof through strong unimpeachable evidence of grounds of rebuttal raised by the aggrieved party and that too through appropriate proceedings. Reliance in this behalf may be placed on principles laid down in **Fayyaz Hussain versus Akbar Hussain and others** (2004 SCMR 964) wherein it is laid down that there is always a presumption of correctness in favour of judicial proceedings and credibility is attached to proceedings before a judicial forum and strong unimpeachable evidence is required to rebut such presumption. By relying upon the aforesaid judgment a Division Bench of this Court in case of **Zaheer Afzal Chatha versus National Accountability Bureau through Director-General and another** (2018 PCrLJ Note 9) has observed that:

“11. Even otherwise, provision of Article 129(e) of Qanun-e-Shahadat Order, 1984, provides presumption of regularity to all acts performed in a judicial proceeding and during the course of official proceedings though with rebuttable presumption. The judicial proceedings are blessed with presumption of truth and Court is bound to believe judicial record unless in case of existence of exceptional circumstances. The true principle intended to be conveyed by the rule, Omnia praesutnuntur rite et solemniter esse acta, i.e. all acts are presumed to have been rightly and regularly done. The Hon’ble Supreme Court of Pakistan in the case of ‘Fayyaz Hussain v. Akbar Hussain and others’ (2004 SCMR 964), has held that credibility is attached to proceedings before a judicial

forum and strong and unimpeachable evidence is required to rebut such presumption.”

8. From the perusal of the principles laid down in the afore-referred judgments it is observed that the petitioner was required to bring on the record some strong and unimpeachable evidence to rebut the presumption of correctness attached to the impugned order. The said evidence or material, *inter alia*, on the one hand could be based on the judicial record of the case itself, of which the court could take judicial notice of, such as the order being against the express statement actually available on the record to show that either the court had misread or misinterpreted the said statement and drawn a wrong conclusion or that the statement was got recorded by the party in some other context, which was different from or not relevant to the matter that had been decided and on the other hand it could be some unimpeachable evidence beyond the record, such as the matter having attained finality after having been previously conclusively decided by a court of competent jurisdiction, or that the conclusion drawn by the court is not possible under the given circumstances of the case, or the court had decided a matter which was not the subject matter of the dispute pending before it, etc.

9. Coming back to the present case, the perusal of its record including the impugned order does not show that the counsel for the petitioner had sought for an adjournment from the Appellate Tribunal on the date of decision either orally or through a written application and nothing else is available on the record to substantiate the said plea taken before this Court. Rather, the first paragraph of the impugned order shows that an application filed by the petitioner for setting aside ex-parte

proceedings against him was pending on the said date, which was allowed subject to payment of Rs. 1000/- as costs. Thereafter the court proceeded further with the main case and recorded statement of the learned counsel representing the petitioner before the said court, which is in terms highlighted by this Court by underlining the same in the order already reproduced above. There does not seem to be any difference in the said statement and the impugned decision passed on the basis of the same, which are completely in consonance with each other, therefore, this Court cannot reach the conclusion on the basis of record of the case read in conjunction with the impugned order that the Appellate Tribunal had misread or misinterpreted the statement of the petitioner to reach an erroneous conclusion.

10. The next question is whether the statement was incorrectly recorded. As already mentioned above, there is nothing available on the record of the Appellate Tribunal to lead to such an inference. The petitioner in order to substantiate the said plea has relied upon the Certificate annexed with this petition issued by the learned Counsel who represented him before the Appellate Tribunal to state that the said counsel had not recorded the statement to remand the matter for decision afresh. The wording of the said certificate is reproduced below:

“It is certified that I Mr. Sh. Sheikh Khalid Hakeem Advocate High Court for the respondent before the Chairman Appellate Tribunal No. 2 Multan in the title case “Globe Cosmetics Company vs. Rohail Rizwan”. I requested for the adjournment on dated 17.06.2020 in title case but unfortunately the case was decided on the same date and mentioned in the order regarding with my consent, but I on oath say that I have never given any consent and put no sign on the corner of the sheet of court order dated 17.06.2020. That clear there is not any consent on behalf of counsel of the respondent”.

11. Whether the afore-referred certificate could be considered as sufficient unimpeachable evidence to rebut what has been recorded in the impugned order. In the opinion of this Court a mere certificate would not suffice to rebut the presumption of authenticity attached to the judicial order. For this purpose reference may be made to the case of **Ghulam Muhammad and others versus Malik Abdul Qadir Khan and others** (PLD 1983 SC 68) wherein the question under determination was whether the High Court omitted to consider and determine the question of limitation despite it having been raised as a ground in memorandum of appeal, the Honourable Supreme Court held as under:-

“If a party having raised a point in the memorandum of appeal or revision does not press the same at the time of hearing normal presumption is that the same was not intended to be pressed and thus was given up. Learned Counsel also attempted to argue that once the point is taken in the memorandum of appeal it should be presumed that it must have been urged at the time of hearing unless it is noted in the judgment that the same was given up or was not pressed. This is not essential in every case. The factual aspect of the question can be concluded by reference to the judgment in questions. The other points are noted therein. The presumption would thus be that the point in question, if raised, would also have been noted. On the other hand there is well-known practice that if a serious dispute is intended to be raised in this behalf, there must be some material at least in the form of an affidavit of the person arguing the matter showing that the point was pressed. In that case, a further serious question might arise whether such assertion would be given preference to the contents of the judgment. After hearing the learned counsel we do not consider it necessary to reopen the question of limitation as the same was not pressed in the High Court.”

12. From the perusal of the afore-referred judgment of the Honourable Supreme Court, it is clear that there must be some supporting material at least in the form of affidavit of learned counsel who appeared before the Appellate Tribunal to substantiate the plea taken by him

but no such affidavit has been produced to substantiate the same.

13. The afore-referred certificate issued by the learned advocate and produced in this Court as Annexure to the constitutional petition against the order passed by the Appellate Tribunal to state that what was recorded by the learned Presiding Officer of the Court in the order passed, which forms part of the judicial record, does not deserve any credence because *inter alia*, firstly, said certificate is not a sufficient unimpeachable evidence to rebut and undo findings of fact recorded by the Appellate Tribunal; secondly, said certificate even if contains a statement stated to be on oath cannot be treated as an affidavit of the advocate wherein certain facts have been deposed under oath administered before and Oaths Commissioner; thirdly, certificate is not issued under any provision of law for it to have a persuasive value or binding effect; fourthly certificate issued on behalf of the party would not have any legal sanctity attached to it without strict proof of its contents and at the most the same can be treated as the plea of the party taken as ground to call in question the impugned order and nothing more and fifthly, findings of fact recorded by courts of competent jurisdiction are not ordinarily interfered by this Court in its Constitutional jurisdiction.

14. Besides, there is another aspect of the matter that even if the afore-referred certificate is treated to be an affidavit, the courts wherein impugned orders are challenged do not give much weight to the same without there being enough supporting corroborative evidence because if such a course of action is adopted, the same would result in a large number of legal complications and multiplicity of litigation and there would be no end to the same, besides such like disputed questions of fact cannot

be decided by the High Court in its constitutional jurisdiction. Reliance in this behalf is placed on the principles laid down in the case of **Fayyaz Hussain versus Akbar Hussain and others** (2004 SCMR 964), wherein the matter under consideration was that the petitioner after having offered to have the matter decided on the basis of respondent's statement to be made on oath, subsequently opted to resile from his offer after such statement was recorded by stating that he had not made such an offer and produced his affidavit to that effect on the record of the higher forum, it has been held by the Supreme Court that adopting course of action of giving preference to affidavit of counsel over judicial proceedings recorded by a Presiding Judge would lead to a large number of legal complications. The operative part of the judgment is reproduced to below:

“Learned counsel attempted to persuade us, to accept affidavit of Ch. Muhammad Afzal Kahloon Advocate over the judicial proceedings recorded in the Court of Additional District Judge in view of unfair reputation of the Presiding officer but we are not inclined to adopt this course of action which may lead to a large number of legal complications. In any event this being an essentially a disputed question of fact could neither be resolved by the High Court nor by this Court in the exercise of extraordinary Constitutional Jurisdiction. There is always a presumption of correctness in favor of judicial proceedings and credibility is attached to the proceedings before a judicial forum. Strong and unimpeachable evidence is required to rebut the presumption which is badly lacking in the case in hand.”

15. From the principle of law laid down in the afore-referred judgment it can easily be inferred that neither the High Court nor the Supreme Court could resolve such disputed questions of fact relating to the matters that transpire in the presence of the Presiding officers of courts below of which note had been taken of in the orders recorded by the said courts but the

correctness of the said proceedings were disputed by a party to the lis.

16. In the judgment reported in the case titled **Chiragh Din versus Mumtaz Ali and another** (2008 PCrLJ 126), it has been held that Judge is the final authority as to what takes place before him at a trial. Statement of the Judge must be regarded as conclusive. Statement of the Judge must be considered as absolute verity and the same ought to be taken precisely as a record and must be acted upon in the same manner as on a record of Court, which by itself imports absolute verity. Law has made the Judge the final authority as to what takes place before him at trial, and that authority must be recognized.

17. From the above, it is concluded that due to non-availability of any direct material/evidence on the record to rebut the presumption of authenticity of record attached to the impugned order/judicial record, this Court is not in a position to determine the veracity of the grounds raised by the petitioner and as presumption of authenticity is attached to the judicial record, therefore, this Court in its constitutional jurisdiction is not inclined to interfere in the impugned orders.

18. However, next question for determination is whether the petitioner has any remedy available to him in circumstances, when findings of fact recorded by the Appellate Tribunal cannot be interfered with by this Court due to insufficiency of material available before this Court to determine grounds raised by the petitioner. The said aspect of the matter can be determined by probing the fact that whether the dispute raised before this Court was earlier raised before and decided by the Appellate Tribunal or not. In this case, the petitioner had not raised the ground of impugned order not depicting correctly what transpired before the Appellate Tribunal before the said

Tribunal, therefore, the said venue is still open to the petitioner as the said aspect of the matter was not finally decided by the said Tribunal and it has the jurisdiction to deal with the same for the reason that every court of law has inherent power and is authorized to correct its order in case some error has crept into the same and as the learned Chairman of the Appellate Tribunal is the best judge as to the authenticity of the order passed by him. This is also in line with the principle laid down in the case of **Haji Mohammed Ilyas versus Haji Mushtaq Ahmed through** L.Rs. (2019 CLC 2041) wherein this Court has held as under:

“There is divergence of stance of the parties relating to recording of proceedings through order dated 30.06.2017, which cannot be resolved by this Court without there being sufficient material available on the record to support contention of either party. In order to substantiate this claim, the petitioner could have instead of filing this Civil Revision before this Court filed an application before the same court for recall of the said order on the ground that the order does not depict the actual position on the record but the said course of action has not been preferred and remedy of filing Civil Revision before this Court has been adopted.”

19. For what has been discussed above, although this Court has no doubt relating to authenticity of the impugned orders passed by the Appellate Court and petitioner has failed to establish sufficient grounds for this Court to interfere in findings of fact recorded by the Appellate Court due to non-availability of sufficient material to establish his claim before this Court and relief is declined to the petitioner, instead of dismissing this petition on merits, this Court is disposing of this petition with the observation that the petitioner may, if advised, file appropriate application before the Punjab Labour Appellate Tribunal No. II, Multan to bring the afore-said facts and grounds to the notice of the said Tribunal for

seeking redress of his grievance and this Court is sanguine that if such an application is filed, the same shall be decided by the Appellate Tribunal on its own merits, in accordance with law.

20. With these observations, the instant constitutional petition stands **disposed of**.

(Muzamil Akhtar Shabir)
Judge

Approved for reporting.

Judge